



Political & Constitutional History of Pakistan (1947-58)

**REASONS FOR DELAY AND MAKING OF FIRST CONSTITUTION DECADE OF
INSTABILITY**

The creation of Pakistan

The creation of Pakistan on August 14, 1947, was a momentous event that resulted from the partition of British India into two separate states: India and Pakistan. This partition marked the end of British colonial rule in the Indian subcontinent and had profound and lasting impacts on the region.

- ▶ **British Colonial Rule:** The British East India Company established control over much of India by the 19th century, and the British Crown took direct control in 1858. The colonial period was marked by economic exploitation, political changes, and the rise of nationalist movements.
- ▶ **Rise of Nationalism:** By the early 20th century, Indian nationalism was on the rise, with diverse groups seeking greater autonomy or full independence from British rule. The Indian National Congress (INC) and the All-India Muslim League (AIML) were the two principal political groups, but their visions for post-colonial India differed significantly.
- ▶ **Demand for a Separate Muslim State:** The AIML, led by Muhammad Ali Jinnah, advocated for a separate state for Muslims, citing concerns about the protection of Muslim identity and interests in a predominantly Hindu India. This idea was articulated in the Lahore Resolution of 1940, which called for independent states for Muslims in the north-western and eastern zones of India.
- ▶ **Mounting Tensions:** By the mid-1940s, communal tensions between Hindus and Muslims were exacerbated by political uncertainty and violence. The British, eager to withdraw from their overstretched empire, accelerated plans for withdrawal.

Partition and Independence

June 3rd Plan: The British government, led by Lord Mountbatten, announced a plan to end British rule and divide India. The plan involved the partition of British India into two states: India and Pakistan. The boundaries were drawn by the Radcliffe Line, which was hastily prepared and resulted in significant dislocation.

August 15, 1947: India gained independence from British rule on August 15, 1947, with Jawaharlal Nehru as its first Prime Minister. Pakistan was created a day earlier, on August 14, 1947, with Muhammad Ali Jinnah as its first Governor-General.

Challenges and Aftermath

Mass Migration: The partition led to one of the largest mass migrations in history, as millions of Hindus and Muslims moved across the newly drawn borders to join their respective religious majorities. This migration was often accompanied by violence and led to significant loss of life.

Communal Violence: The partition triggered widespread communal riots, which caused immense suffering and casualties on both sides of the border. The violence was fueled by fear, hatred, and the chaos of the migration process.

Integration Issues: Both India and Pakistan faced the enormous task of integrating diverse regions and communities into their new national frameworks. The partition left both countries with significant challenges in terms of political stability, economic development, and social cohesion.

Legacy: The legacy of partition continues to influence South Asian politics and relations between India and Pakistan. The dispute over territories like Kashmir, which was not fully resolved at the time of partition, has been a recurring source of conflict between the two countries.

The First Constituent Assembly and Early Political Instability (1947-1954)

First Constituent Assembly (1947-1954)

The first Constituent Assembly of Pakistan was formed in 1947 to create a constitution for the new country. Muhammad Ali Jinnah, the founder of Pakistan, was its main leader and wanted the country to be democratic and focused on fairness. However, Jinnah died in September 1948, which made it harder for the Assembly to do its job. The process of writing the constitution was slow because of disagreements and the need to find common ground among different groups. For the time being, Pakistan used the old 1935 Government of India Act as a temporary constitution.

Initial Political Instability (1948-1951)

In the early years after independence, Pakistan faced a lot of political instability. The country saw frequent changes in government, and leaders had trouble staying in power. This period was also marked by regional and ethnic tensions, which made governing difficult. The situation worsened when Prime Minister Liaquat Ali Khan was assassinated in October 1951, leaving a leadership gap and increasing instability. Because of these ongoing problems, the first Constituent Assembly was dissolved in 1954, and Pakistan continued to operate under temporary rules until a new Assembly could create a permanent constitution.

Between 1951 and 1956, the attempts to draft a constitution

Governor-General Ghulam Muhammad: He played a significant role in the political turmoil of the period. Ghulam Muhammad frequently intervened in constitutional matters and dissolved the Constituent Assembly, which hindered the drafting process.

Prime Ministers Khawaja Nazimuddin and Muhammad Ali Bogra:

- ▶ **Khawaja Nazimuddin** (Prime Minister from 1951 to 1953) was a proponent of maintaining a unitary system with strong central control, reflecting his party's views.
- ▶ **Muhammad Ali Bogra** (Prime Minister from 1953 to 1955) proposed the **Bogra Formula**, which aimed to resolve the federalism versus unitary state debate by suggesting a mixed system that combined elements of both federal and unitary systems. His formula sought to balance provincial autonomy with central authority.

Political Parties:

- ▶ **The All-India Muslim League:** Dominated early in Pakistan's history, and its leaders had varied opinions on the constitution. Some favored a unitary system, while others supported greater provincial autonomy.
- ▶ **The Pakistan National Congress:** Generally advocated for a more federal system with greater provincial powers.
- ▶ **The Ulema and Religious Parties:** Emphasized the role of Islam in governance and sought to ensure that the constitution reflected Islamic principles and laws.

The Constitution of 1956 and Its Implications

After years of delays and political turmoil, Pakistan's first constitution was adopted on March 23, 1956, marking a crucial shift from its previous dominion status under the British Commonwealth to a full Republic. The 1956 Constitution established a parliamentary system of governance. It designated the President as the ceremonial head of state, with limited powers primarily focused on ceremonial duties and representing Pakistan in international affairs. The Prime Minister, on the other hand, was given executive authority and became responsible for the day-to-day administration of the government. This system was intended to stabilize governance and create a more democratic framework. Key figures during this transition included Governor-General Ghulam Muhammad, who played a central role in overseeing the process, and Prime Ministers Khawaja Nazimuddin and Chaudhry Muhammad Ali, who were involved in the final stages of drafting and implementing the constitution. Despite these advancements, the constitution's stability was short-lived, as ongoing political instability and economic challenges led to further crises and ultimately necessitated a new constitution in 1958.

Key Leaders in Pakistan's Constitutional Evolution (1951-1956)

Governor-General Ghulam Muhammad: He was a central figure in the final stages leading up to the adoption of the 1956 Constitution. Although his tenure was marked by frequent intervention in politics, he eventually oversaw the transition to the new republic.

Prime Minister Khawaja Nazimuddin: He was in office when the 1956 Constitution was adopted. As Prime Minister, Nazimuddin played a role in the transition from a dominion to a republic.

Chaudhry Muhammad Ali: As the Prime Minister during the later stages of drafting and the adoption of the constitution, he played a significant role in the final stages of constitutional development.

Decade of Instability and the Rise of Military Rule (1956-1958)

Political Instability

After the adoption of the 1956 Constitution, Pakistan entered a decade marked by significant political instability. The new constitution struggled to stabilize the country's governance due to several persistent issues. Frequent changes in government characterized this period, with several Prime Ministers and political leaders coming into and out of office. Economic difficulties, including issues related to resource management and development, compounded the instability. Administrative inefficiencies also plagued the government, further undermining its ability to address the nation's challenges effectively.

Key figures during this period included:

Prime Minister Khawaja Nazimuddin (1951-1953) and **Prime Minister Muhammad Ali Bogra** (1953-1955), who struggled with political and administrative challenges.

Chaudhry Muhammad Ali (1955-1956), who was Prime Minister during the final stages of the 1956 Constitution's adoption and faced difficulties in stabilizing the political situation.

Martial Law (1958)

In October 1958, the political instability reached a critical point. President Iskander Mirza, facing mounting pressure and unable to control the worsening political and economic situation, decided to take drastic action. On October 7, 1958, he abrogated the 1956 Constitution and declared martial law. This decision marked the end of civilian governance under the 1956 Constitution and led to a significant shift in Pakistan's political landscape. General

Ayub Khan, who was the Commander-in-Chief of the Army at the time, was appointed as the Chief Martial Law Administrator. Ayub Khan quickly consolidated power, and on October 27, 1958, he deposed President Iskander Mirza in a military coup and assumed the presidency himself. This event marked the beginning of a prolonged period of military rule in Pakistan, which would last until the early 1970s.

Ayub Khan came to power in 1958

When Ayub Khan came to power in 1958, he made big changes in Pakistan. He introduced a new constitution in 1962, which changed the government to a presidential system where the President had a lot of power. This was meant to make the government work better and bring more stability.

- ▶ **Economic Reforms:** Ayub Khan worked on improving the economy. He introduced land reforms to help smaller farmers and tried to build new industries and infrastructure, like roads and dams.
- ▶ **Administrative Changes:** The government was reorganized to make it run more smoothly. Local governments were restructured to improve administration.
- ▶ **Economic Growth:** Pakistan experienced significant economic progress, with more development projects and better infrastructure during his rule.
- ▶ **Political Repression:** Ayub Khan's government limited political freedoms. Opposing voices were often silenced, and there were restrictions on political activities and the press.
- ▶ **Weakening of Democracy:** The new constitution gave the President a lot of power, which made it hard for democratic processes to thrive. There was less room for political competition and public debate.
- ▶ **Social Unrest:** Despite economic improvements, many people were unhappy with the regime. Social inequalities and dissatisfaction grew, leading to unrest.

Key Leaders:

Muhammad Ali Jinnah: As the founder of Pakistan, Jinnah's vision influenced the initial framework of the country's governance. While Jinnah did not directly draft the constitution, his principles and leadership laid the foundation for the constitutional development of Pakistan. He advocated for a democratic system with protection for minority rights.

Liaquat Ali Khan: During Liaquat Ali Khan's tenure as Prime Minister, Pakistan did not have a formal constitution. However, his administration worked towards establishing a legal and administrative framework for the country. He was a key figure in the discussions leading to the adoption of the first constitution.

Khawaja Nazimuddin: As Prime Minister following Liaquat Ali Khan, Nazimuddin's government continued to work towards a formal constitution. His tenure saw the drafting of the 1956 Constitution, which declared Pakistan a Republic. This constitution established a federal structure and aimed to balance powers between the central government and provinces.

Muhammad Ali Bogra: Bogra played a crucial role in constitutional development through the "Bogra Formula" of 1953. This formula was a proposed solution to the political deadlock between the central government and provinces. It sought to address issues of representation and provincial autonomy but faced mixed reactions and was not fully implemented. However, Bogra's tenure was marked by the efforts to shape the political framework of the country.

Iskander Mirza: Mirza's presidency was a turning point in Pakistan's constitutional history. In 1958, he abrogated the 1956 Constitution, dissolved the national and provincial assemblies, and declared martial law. This move was a significant shift away from parliamentary democracy and led to a period of military rule.

Ayub Khan: After taking over as President in 1958, Ayub Khan introduced a new constitution in 1962. This constitution replaced the 1956 Constitution and established a presidential system with Ayub Khan himself at the center of power. The 1962 Constitution also introduced a system of basic democracies and aimed to provide political stability, but it also concentrated significant power in the executive branch and limited political freedoms.

Conclusion

In short, Pakistan's political and constitutional history from 1947 to 1958 was a time of great difficulty and change. The delay in creating the first constitution happened because the country faced many problems, like unstable leadership and disagreements on how to govern. Right after gaining independence, Pakistan struggled with economic issues and social tensions, which made it hard to establish a clear and stable government. Throughout this decade, there were many changes in leadership and ongoing instability, which delayed the process of making a constitution. Even though the 1956 Constitution was eventually adopted, this early period showed just how challenging it was for Pakistan to find its footing and build a stable political system.